
DEPARTMENT PHILOSOPHY

The refugee assistance programs are federal programs which help refugees to become self-sufficient after their arrival in the U.S. Refugee Assistance Program (RAP) has two components; Refugee Cash Assistance (RCA) and Refugee Medical Assistance (RMA).

DEPARTMENT POLICY

RCA is a cash program for refugees who are not eligible for the Family Independence Program (FIP). RMA is a medical program for refugees who are not eligible for other Medicaid (MA) programs.

In addition to refugees, eligibility for RCA and RMA is available to certain other non U.S. citizens with specified immigration statuses, identified in the section refugees in this item. **Treat these individuals as refugees**, for purposes of this item.

RCA/RMA ELIGIBILITY PERIOD

RCA and/or RMA is available **only** during the four months immediately following the refugee's date of entry into the U.S. or date asylum is granted. Month one is the month containing date of entry or date of adjustment to refugee status.

Exception: RCA and/or RMA is available for up to twelve months for individuals who have a date of entry into the U.S. or date asylum is granted on or before May 4, 2025.

PROGRAM ADMINISTRATION

Michigan Department of Health and Human Services (MDHHS) local office specialists determine eligibility for all programs. For participants in RCA, the specialist must complete the manual referral to the refugee contractor.

The Refugee Services Program under the Office of Global Michigan in the Department of Labor and Economic Opportunity (LEO) administers all refugee assistance programs. MDHHS is responsible for eligibility determinations for the RCA and RMA programs. The Office of Global Michigan partners with MDHHS on refugee health programming.

Refugee Resettlement Agencies

Refugee Resettlement Agencies also known as Voluntary Agencies (VOLAGs) may provide the following services:

- Reception and placement services to newly arrived refugees including orientation, counseling, resettlement grants, translation/interpretation, and related services.
- Employability services such as English language instruction, transportation, child care, citizenship and employment authorization document assistance, translation/interpretation, and related services.
- Matching Grants (MG) to help refugees attain economic self-sufficiency without accessing public cash assistance.

CONCURRENT RECEIPT OF BENEFITS

At application, all refugees must provide the name of the resettlement or other agencies that assisted them.

RCA

Individuals **may** voluntarily leave the MG program by applying for cash assistance. An individual **may not** receive MG and FIP/SDA/RCA concurrently.

Notify the resettlement agency when a refugee applies for cash assistance. If a MG case is active, the resettlement agency must close the MG prior to cash approval.

RMA

An individual **may** receive MG and MA/RMA concurrently.

REFUGEES

Only a person who is a refugee (or is treated as a refugee) and who is **not** a U.S. citizen can be eligible for RCA/RMA.

United States Citizenship and Immigration Services (USCIS) determines immigration status. If the status of a refugee cannot be verified through immigration documents, contact the local resettlement agency that provided for the refugee's initial resettlement.

Individuals with the following statuses may be eligible for RCA/MA:

- **Refugee or Asylee.** An individual from any country admitted into the U.S. with the status of refugee or asylee.

Documentation is an I-94, Arrival/Departure Record, indicating the Individual is one of the following:

- Admitted as a refugee under section 207 of the Immigration and Nationality Act (INA).
- Granted asylum under section 208 of the INA.
- **Afghan and Iraqi.** Individuals granted a special immigrant visa (SIV).
- **Derivative Asylee.** A spouse and/or child of a principal asylee entering the U.S. at a later date through an Asylee Relative Petition (I-730).
- **Cuban/Haitian Entrant.** An individual admitted into the U.S. from Cuba or Haiti who meets entrant criteria.

Documentation is an I-94, Arrival/Departure Record, indicating the Individual was admitted into the U.S. from Cuba or Haiti and one of the following:

- Document is annotated as a Cuban/Haitian Entrant (Status Pending), parole, 212(d)(5) or Form I-589 Filed.
- Individual has letter or notice from USCIS indicating ongoing (**not** final) deportation, exclusion or removal proceedings.
- **Amerasian.** An individual admitted into the U.S. under P.L. 100-202.

Documentation is one of the following documents annotated with class code AM.

- I-94.
- I-551.
- U.S. or Vietnamese Passport.

- Vietnamese Exit Visa (Laissez Passer).

- **Parolee.** An individual from Cuba or Haiti paroled into the U.S. under INA section 212(d)(5) for at least one year.

Documentation is an I-94 annotated with INA section 212(d)(5) which has a parole end date (duration) at least one year later than the date of entry.

- **Permanent Resident.** An individual admitted for permanent residence, provided the individual previously held one of the refugee or asylee statuses identified above.

Documentation is an I-551 annotated with class code RE, AS, SI, SQ, CH, or CU.

- **Victim of Trafficking.** An individual determined by the federal Office of Refugee Resettlement (ORR) to be a victim of trafficking.

Documentation is **both** of the following:

- The **original** certification letter from ORR, or for victims under age 18, an **original** eligibility letter from ORR (see Exhibits I and II).
- Telephone contact with the ORR trafficking verification line at 1-866-401-5510 verifying the validity of the letter(s).

Note: No other immigration documents are necessary for victims of trafficking.

DATE OF ENTRY

RCA

USCIS determines an individual's date of entry into the U.S. and enters it on the I-94 or other immigration document. This USCIS determination is **not** subject to the MDHHS fair hearing process.

For **asylees**, acceptable non-citizen status begins on the date asylum is granted on the I-94, or on the Asylum Approval letter, regardless of arrival date. If the date of arrival and the date asylum is granted are different, notify the Office of Global Michigan via the policy email box: LEO-RefugeeServices@michigan.gov

For **victims of trafficking**, the date of entry is the date on the ORR certification/eligibility letter.

For **derivative asylees**, acceptable non-citizen status does not begin on the date that asylum is granted. The acceptable non-citizen status date begins on the I-94 entry date or the date the I-730 is approved.

For **Afghan and Iraqi special immigrants**, acceptable non-citizen status begins with the month containing the date of entry in the U.S.

ELIGIBILITY

Bridges uses the following guideline when determining eligibility for refugees:

- Bridges determines eligibility for FIP and MA before determining eligibility for RCA and /or RMA.
- Bridges determines FIP and MA eligibility when an RCA/RMA recipient reports a change that indicates potential for FIP or MA eligibility for (example when an RCA recipient becomes pregnant).

RCA

RCA eligibility factors are listed in BEM 209, Cash Assistance General Requirements and in BEM 245, School Attendance and Student Status.

RMA

RCA recipients who are **not** eligible for MA are **automatically** eligible for RMA.

Note: Excess income for MA resulting in a deductible is not considered MA eligible.

See extended medical coverage in this item about when RMA may be extended.

Note: An ex parte review (see Glossary) is required before a Medicaid closure when there is an actual or anticipated change; unless the change would result in closure due to ineligibility for all Medicaid categories. When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case closure. The review includes all consideration of all MA categories; see BAM 115, Application Processing, and BAM 220, Case Actions.

Note: A full-time student in post-secondary education is not eligible for RCA or RMA. The school determines full-time enrollment and attendance; see BEM 245, School Attendance and Student Status.

Group Composition

RCA

See BEM 215 for RCA group composition policy.

RMA

See BEM 216, RMA Group Composition, for refugees who are not eligible for MA.

FINANCIAL ELIGIBILITY FACTORS

Assets

RCA

Use FIP policy in BEM 400 to evaluate assets.

Note: The following are special RCA asset rules:

- Do **not** consider the assets of a refugee's sponsor in determining the refugee's eligibility.
- Cash assistance given to a refugee from a resettlement agency is **not** an asset.

RMA

Use RMA policy in BEM 400 to evaluate assets.

See extended medical coverage in this item

Income

RCA

Follow income policy in BEM 500.

Income eligibility exists when net income of individuals with an RCA EDG status of eligible or disqualified is less than the needs of the certified group (CG). See RFT 211 for RCA payment standards.

RMA Only

Income eligibility exists when net income does not exceed the income limit of Group 2 Medicaid categories.

- Do **not** count any income received by the refugee from a refugee resettlement agency or the refugee's sponsor.
- Apply policy in BEM 546 if an eligible person is an L/H individual.
- If net income exceeds the income limit, RMA eligibility is still possible using policy in BEM 545.
- See extended medical coverage in this item for recipients who lose eligibility due to excess income.

**Income and Assets
at Application****RMA**

At application, determine eligibility based on the group's income and assets on the date of application. Bridges uses policy in BEM 536 to determine the group's net income. Do **not** prospect income from a source if no income has been received by the date of application.

Example: The Smith family applies on November 6, 2009. Mr. Smith has started a job but has not received his first paycheck. Do **not** prospect any earned income for Mr. Smith in determining initial eligibility.

**Income and Assets
After Application****RMA**

After initial eligibility has been established for RMA or MA, exclude recipient's earned income and assets for RMA determination.

Example: Mr. Smith (example above) reports receiving his first paycheck on November 7, 2009. These earnings are **not** counted to determine initial or ongoing eligibility.

**EXTENDED
MEDICAL
COVERAGE**

Bridges will continue or initiate RMA coverage for refugees when all of the following are true:

- RCA eligibility is lost due to excess earned income or assets.
- Members are within four months of their date of entry into the U.S. or date asylum was granted.
- Members are **not** eligible for MA or MI Child.

Do not require a new application; see benefit periods in this item.

RMA Termination

Bridges will **only** terminate RMA for a group member who is either of the following:

- No longer meets the MA eligibility factors found in BEM 220, Residence.
- Becomes eligible for MA.

**STANDARD OF
PROMPTNESS****RCA**

Approve or deny an application for RCA and mail the individual a notice within **30 days** from the date of application; see BAM 115 for all other application processing policies.

BENEFIT PERIODS**RCA**

Bridges sets the benefit period based on date(s) of entry.

Specialists must follow-up to remove each group member whose eligibility ends before the benefit period end date. Bridges automatically stops RCA benefits effective the month when the last group member has been in the U.S. for four months.

RMA

Bridges sets the redetermination date based on date(s) of entry.

Note: An ex parte review (see Glossary) is required before a MA closure when there is an actual or anticipated change, unless the change would result in closure due to ineligibility for all Medicaid categories. When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case closure. The review includes consideration of all MA categories; see BAM 115 and 220.

RMA

RMA recipients receive a MiHealth card. Covered services for RMA are the same as in Medicaid. Medicaid reimbursement procedures, such as billing instructions and prior authorization procedures, are used for RMA.

**TRANSLATION AND
INTERPRETATION
SERVICES****RCA and RMA**

Use the DHS-848, Certification of Translation/Interpretation for Non-English Speaking Applicants or Recipients, whenever an individual who is non-English speaking or has limited English proficiency (LEP) is provided translation/interpretation services. The 848 is documentation an individual has been provided written or verbal notice in a language they can understand.

See BAM 105, rights and responsibilities, for additional information regarding translation and interpretation.

**VERIFICATION
REQUIREMENTS****RCA and RMA**

Verify the refugee statuses of each individual at application or member add. See the refugees section in this item for documents that verify refugee status. If the applicant provides verification of a non-citizen status other than what is listed in this item or in BEM 225, Citizenship/Non-Citizen Status, contact the Office of Global Michigan for approval of the verification documents via the policy mailbox: LEO-RefugeeServices@michigan.gov

Verify each refugee's date of entry into the U.S. Use the I-94, other pertinent USCIS document, or contact with USCIS to verify date of entry.

RMA

Use Group 2 MA verification requirements for all other eligibility factors.

EXHIBIT I - SAMPLE ADULT VICTIM OF TRAFFICKING ORR CERTIFICATION LETTER

HHS Tracking Number
5555555555

Ms. Susie Doe
c/o Smith County Community Service Office
Department of Social Services
123 Main St.
Everytown, CA 33333-3333

CERTIFICATION LETTER

Dear Ms. Doe:

This letter confirms that you have been certified by the U.S. Department of Health and Human Services (HHS) under section 107(b) of the Trafficking Victims Protection Act of 2000. With this certification, you are eligible for benefits and services under any Federal or State program or activity funded or administered by any Federal agency to the same extent as an individual who is admitted to the United States as a refugee under section 207 of the Immigration and Nationality Act, provided you meet other eligibility criteria. Certification does not confer immigration status.

Your certification date is **JANUARY 1, 1999**. The benefits outlined in the previous paragraph may offer assistance for only limited time periods that start from the date of this certification. Therefore, if you wish to seek assistance, *it is important that you do so as soon as possible after receipt of this letter.*

You should present this letter when you apply for benefits or services. **Benefit-issuing agencies must call the trafficking verification line at (202) 401-5510 in the Office of Refugee Resettlement to verify the validity of this document and to inform HHS of the benefits for which you have applied.**

Sincerely,

Nguyen Van Hanh, PhD
Director
Office of Refugee Resettlement

EXHIBIT II - SAMPLE CHILD VICTIM OF TRAFFICKING ORR ELIGIBILITY LETTER

HHS Tracking Number
5555555555

Ms. Susie Doe
c/o Community Service Office
Department of Social Services
555 Main St.
Everytown, WA 55555-5555

Dear Ms. Doe:

This letter confirms that under section 107(b) of the Trafficking Victims Protection Act of 2000, you are eligible for benefits and services under any Federal or State program or activity funded or administered by any Federal agency to the same extent as an individual who is admitted to the United States as a refugee under section 207 of the Immigration and Nationality Act, provided you meet other eligibility criteria. This letter does not confer immigration status.

Your eligibility date is **JANUARY 1, 1999**. The benefits outlined in the previous paragraph may offer assistance for only limited time periods that start from the date of this eligibility letter. Therefore, if you wish to seek assistance, *it is important that you do so as soon as possible after receipt of this letter.*

You should present this letter when you apply for benefits or services. **Benefit-issuing agencies must call the trafficking verification line at (202) 401-5510 in the Office of Refugee Resettlement to verify the validity of this document and to inform HHS of the benefits for which you have applied.**

Sincerely,

Nguyen Van Hanh, PhD
Director
Office of Refugee Resettlement

LEGAL BASE

45 CFR 400
P.L. 106-386 of 2000, Section 107